

December 23, 2003



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Research and
Special Programs
Administration**

DOT-E 12871
(SECOND REVISION)

EXPIRATION DATE: November 30, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Southern California Edison (SCE)
San Clemente, CA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a reactor pressure vessel with its Class C internals from the San Onofre Nuclear Generating Station to the Chem-Nuclear Systems, Inc. (CNSI) Waste Management Facility located in Barnwell, SC. Under the provisions of this exemption, the reactor pressure vessel may be classed as a low specific activity material (LSA-III) and transported in a non-specification package. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analysis performed in the development of this exemption only considered the hazards and risks associated with transportation in commerce of the reactor vessel and its packaging.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED:

- a. 49 CFR 173.403 in that the reactor vessel and its Class C internals may be considered as LSA-III even though complete compliance with the material definition has not been demonstrated.
- b. 49 CFR 173.427 in that reactor pressure vessel package transport system (RPVPTS) proposed is equivalent to that required; modified mechanical testing is acceptable; and the dose rate at 3 meters from the unshielded internal components of the reactor vessel may exceed 10 mSv/hr (1 rem/hr) at 3 meters.
- c. 49 CFR 173.468 in that the leach testing required for LSA-III is not required.

5. BASIS: This exemption is based on the SCE applications dated November 16, 2001 and July 11, 2003, and the technical information dated September 5, 2003; October 23, 2003; and November 7, 2003. All documents were submitted in accordance with § 107.105 and the public proceeding thereon. An additional letter was submitted dated December 21, 2003.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, transported under special arrangement, <i>non fissile or fissile excepted</i>	7	UN 2919	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) The RPVPTS must be as described in SCE documentation on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA).

(2) The contamination levels and radionuclides present on the RPVPTS and the internal components of the reactor vessel must be as identified in the SCE documentation on file with OHMEA.

b. OPERATIONAL CONTROLS -

(1) The components must be consigned as exclusive use under the provisions of § 173.427(a)(6).

(2) SCE must comply with all applicable maritime regulations.

(3) Compliance with NVIC 2-87 and ANSI N14.24-1985; tug and barge documentation; the material condition of the barge and tugs; the appropriateness of the tug's navigation safety equipment; and the qualifications of the tug crews must be verified by the Coast Guard Marine Safety Office at loading port.

(4) The International Load Line Certificate for each tug involved in this shipment must be valid for the duration of the voyage.

(5) Two ocean going tugs will be used for the entire voyage, except during provisioning operations.

c. COMMUNICATIONS -

(1) SCE must notify the Associate Administrator for Hazardous Materials Safety (AAHMS) prior to commencement of transportation and upon completion of transit.

(2) The outside of the package must be plainly and durably marked "DOT-E 12871". Letters and numerals must be at least one inch wide and six inches high.

(3) The outside of the package must be marked, labeled and placarded in accordance with the provisions of § 173.427(a)(6) for domestic shipments of LSA required to be shipped as exclusive use.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the packages are offered for transportation.

b. The grantee of this exemption must comply with the provisions of 49 CFR 172 Subpart I.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel (barge) and rail freight.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel (barge) and motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: JLW